

TERMS OF SERVICE

1. Introduction

Welcome to Medaculous ("Medaculous," "we," "our," or "us").

These Terms of Service ("Terms") govern your access to and use of the Medaculous website, mobile applications, software, AI features, and related services (collectively, the "Services").

By creating an account, accessing, or using Medaculous, you agree to these Terms. If you do not agree, do not use the Services.

You must be at least 18 years old or the age of majority in your jurisdiction to create an account. If you are under 18, you may only use Medaculous with permission and supervision of a parent, guardian, or educational institution where permitted by law.

IMPORTANT NOTICE

MEDACULOUS IS A MEDICAL EDUCATION, INFORMATION, REFERENCE, AND CLINICAL DECISION-SUPPORT TOOL. IT IS NOT A SUBSTITUTE FOR A LICENSED HEALTHCARE PROFESSIONAL, CLINICAL EXAMINATION, PROFESSIONAL MEDICAL JUDGMENT, LOCAL CLINICAL PROTOCOLS, OR EMERGENCY MEDICAL SERVICES.

Medaculous may provide information concerning diseases, symptoms, investigations, medications, drug interactions, treatment approaches, clinical examinations, clinical reasoning, and other medical subjects.

Some information may be generated or assisted by artificial intelligence.

Medical information can change rapidly. Information that was accurate when generated or published may subsequently become outdated, incomplete, contraindicated, or inconsistent with current guidelines.

You are responsible for independently evaluating information obtained through Medaculous before relying upon it.

2. DESCRIPTION OF MEDACULOUS

Medaculous is intended to support healthcare education and clinical reference.

Depending on your subscription and the version of the Services available to you, Medaculous may include:

1. Systems and disease references;
2. Symptom-based differential diagnosis tools;
3. Symptom-based medication information and recommendations;

4. Drug formulary and prescribing information;
5. Clinical and personal notes;
6. Medaculous AI;
7. Knowledge Hub and uploaded educational documents;
8. Medical calculators and calculation tools;
9. Ward Companion;
10. Exam Planner; and
11. OSCE Preparation.

Features may change over time. We may add, modify, suspend, replace, or discontinue features in accordance with these Terms.

3. ELIGIBILITY

You must be legally capable of entering into a binding agreement to use Medaculous.

Unless otherwise expressly permitted by applicable law or by Medaculous, users must be at least 18 years old.

If you use Medaculous on behalf of an organization, university, hospital, clinic, employer, or other entity, you represent that you have authority to bind that entity to these Terms.

You must not use Medaculous if you are prohibited from doing so under applicable law.

4. ACCOUNT REGISTRATION

Certain features require an account.

You agree to provide accurate, current, and complete information when registering.

You are responsible for maintaining the confidentiality of your login credentials.

You are responsible for activity occurring through your account unless caused by circumstances outside your reasonable control.

You must promptly notify Medaculous if you believe that your account has been compromised.

You must not:

- Share your account with another person;
- Sell, rent, lease, sublicense, or transfer your account;
- Create accounts for fraudulent purposes;
- Impersonate another person;
- Circumvent account restrictions;

- Attempt to obtain unauthorized access to another account.

We reserve the right to suspend or terminate accounts that contain materially false information or are used in violation of these Terms.

5. PROFESSIONAL STATUS

Some Medaculous features may be designed for physicians, residents, medical students, nurses, pharmacists, or other healthcare professionals.

Medaculous does not verify that every user is a licensed healthcare professional.

Selecting a professional category during registration does not establish that Medaculous has verified your professional credentials.

You are solely responsible for ensuring that your use of the Services is appropriate for your training, professional qualifications, jurisdiction, and scope of practice.

6. MEDICAL INFORMATION DISCLAIMER

Medaculous does not provide medical diagnosis, treatment, or emergency medical services.

Information provided through Medaculous may include:

- Differential diagnoses;
- Possible causes of symptoms;
- Suggested investigations;
- Red flags;
- Medication information;
- Drug interactions;
- Dosing information;
- Clinical examination sequences;
- Treatment considerations;
- Clinical guidelines;
- Educational explanations.

These outputs are provided as informational and educational support.

They are not individualized medical orders or prescriptions.

A healthcare professional using Medaculous remains solely responsible for:

- Taking an appropriate history;
- Performing an appropriate examination;

- Reviewing relevant investigations;
- Establishing a diagnosis;
- Determining whether treatment is appropriate;
- Selecting medications;
- Determining dosage and duration;
- Checking contraindications;
- Checking allergies;
- Checking drug interactions;
- Considering renal and hepatic function;
- Considering pregnancy and breastfeeding where relevant;
- Considering patient-specific factors;
- Obtaining appropriate consent;
- Complying with applicable professional standards and local regulations.

7. EMERGENCIES

Medaculous is not an emergency medical service.

Do not use Medaculous as the sole source of information during an emergency.

If you or another person may be experiencing a medical emergency, contact the appropriate emergency medical service or seek immediate medical attention.

Medaculous does not guarantee that its Services will identify emergencies, urgent conditions, life-threatening conditions, or clinical deterioration.

8. AI-GENERATED INFORMATION

Medaculous may use artificial intelligence and machine-learning technologies to generate, summarize, organize, classify, or otherwise process information.

AI-generated content may contain errors.

AI may:

- Produce incorrect information;
- Omit important information;
- Misinterpret a question;
- Generate unsupported conclusions;
- Generate inaccurate citations;

- Provide inappropriate differential diagnoses;
- Provide incorrect medication information;
- Provide incorrect dosages;
- Fail to identify contraindications;
- Fail to identify drug interactions;
- Fail to recognize a medical emergency;
- Produce outdated information;
- Generate information that conflicts with local guidelines.

AI outputs should therefore be treated as suggestions or informational material requiring human verification.

You agree not to treat AI output as an authoritative medical determination.

9. NO GUARANTEE OF CLINICAL ACCURACY

We do not warrant that medical information available through Medaculous is:

- Complete;
- Accurate;
- Current;
- Error-free;
- Appropriate for a particular patient;
- Appropriate for a particular jurisdiction;
- Consistent with every clinical guideline;
- Appropriate for every clinical situation.

Clinical guidelines, formularies, drug availability, drug names, regulatory approvals, recommended doses, and standards of care may vary by country and may change without notice.

You must verify important information against authoritative and current sources.

10. SYMPTOM AND DIFFERENTIAL DIAGNOSIS FEATURES

Medaculous may allow users to enter symptoms and receive possible differential diagnoses or suggestions for further assessment.

These results are not diagnoses.

The absence of a condition from an AI-generated or algorithmically generated differential does not mean that the condition has been excluded.

The presence of a condition in a differential does not mean that the condition is present.

Medaculous does not guarantee that all serious, rare, common, or clinically relevant diagnoses will be identified.

Users must exercise independent clinical judgment.

11. MEDICATION AND DRUG RECOMMENDATION FEATURES

Medaculous may provide medication information, including possible symptomatic treatments, therapeutic alternatives, drug interactions, contraindications, or prescribing information.

Medication information must be independently verified before use.

You must confirm, as applicable:

- Drug identity;
- Generic and brand name;
- Strength;
- Formulation;
- Route;
- Dose;
- Frequency;
- Duration;
- Maximum dose;
- Indications;
- Contraindications;
- Allergies;
- Drug interactions;
- Renal dosing;
- Hepatic dosing;
- Age-related considerations;
- Pregnancy and lactation considerations;
- Local availability;
- Regulatory status;
- Current prescribing guidance.

Medaculous does not guarantee that a medication is approved, available, appropriate, or lawful for use in your jurisdiction.

12. FORMULARY

The Medaculous Formulary may contain drug names, brand names, generic names, indications, dosing information, warnings, and other prescribing information.

A formulary entry does not constitute an authorization to prescribe or administer a medication.

Brand availability and regulatory status vary between countries.

You are responsible for verifying medication information against an authoritative source applicable to your jurisdiction.

13. WARD COMPANION

The Ward Companion may provide organizational tools such as:

- Patient lists;
- Tasks;
- Pending investigations;
- Follow-up reminders;
- Handover summaries;
- Clinical notes;
- Checklists.

Ward Companion is not an electronic medical record unless Medaculous expressly states otherwise.

You remain responsible for ensuring that clinical information is accurately recorded and transferred to any official medical record or institutional system.

A reminder, notification, checklist item, or generated handover summary may fail, be delayed, be incomplete, or contain errors.

You must not rely solely on Medaculous for critical patient safety information.

14. PATIENT INFORMATION

You should avoid entering identifiable patient information into Medaculous unless:

1. You have a lawful basis and appropriate authorization to do so;
2. Your organization permits such use;
3. The relevant laws and professional obligations allow such use; and

4. The use is consistent with our Privacy Policy and any applicable healthcare data agreement.

Where possible, use de-identified information.

Do not enter unnecessary:

- Patient names;
- Addresses;
- Telephone numbers;
- National identification numbers;
- Medical record numbers;
- Insurance numbers;
- Exact dates of birth;
- Photographs containing identifying information;
- Other directly identifying information.

You remain responsible for determining whether information uploaded to Medaculous constitutes protected or regulated health information in your jurisdiction.

15. ORGANIZATIONAL AND HEALTHCARE USE

Medaculous is not automatically intended or certified for use as an organization's official clinical record system.

If a hospital, clinic, university, healthcare provider, or other organization intends to use Medaculous for regulated patient information or institutional clinical workflows, the organization must contact Medaculous to determine whether an appropriate commercial agreement, data-processing agreement, business associate agreement, security review, or other contractual arrangement is required.

Nothing in these Terms by itself creates a HIPAA business associate relationship, healthcare-provider relationship, data-processing agreement, or other regulated healthcare relationship.

Where applicable law requires a separate agreement, the separate agreement will govern to the extent of any conflict.

16. USER CONTENT

You may be able to submit, upload, store, create, or otherwise provide content through Medaculous ("User Content").

User Content may include:

- Notes;

- Text;
- Images;
- PDFs;
- Study materials;
- Questions;
- Prompts;
- Flashcards;
- Documents;
- Other educational materials.

You retain ownership of User Content that you lawfully own.

You grant Medaculous a limited, non-exclusive, worldwide, royalty-free license to host, store, reproduce, transmit, process, and display your User Content solely as reasonably necessary to provide, maintain, secure, troubleshoot, and improve the Services, subject to our Privacy Policy and any additional terms presented when a feature is used.

We do not acquire ownership of your User Content merely because you upload it.

17. USER CONTENT REPRESENTATIONS

By uploading User Content, you represent that:

- You have the right to upload it;
- You have the necessary permissions;
- Its use does not violate another person's rights;
- Its use does not violate confidentiality obligations;
- Its use does not violate applicable law;
- You have obtained required permissions or consent.

You must not upload confidential information belonging to another person or organization unless you are authorized to do so.

18. COPYRIGHTED MATERIAL

You must not upload or distribute copyrighted material unless you have the necessary rights or permission.

This is particularly relevant to:

- Medical textbooks;
- Paid clinical resources;

- Institutional teaching materials;
- Proprietary guidelines;
- Copyrighted examination resources;
- Commercial question banks.

Medaculous may remove content that it reasonably believes infringes intellectual-property rights.

19. OSCE PREPARATION

The OSCE Preparation feature may provide structured clinical examination practice.

It may include examinations such as:

- Cardiovascular;
- Respiratory;
- Abdominal;
- Neurological;
- Cranial nerves;
- Musculoskeletal;
- Peripheral vascular;
- ENT;
- Ophthalmological;
- Paediatric;
- Obstetric;
- Mental state;
- Dermatological;
- Other clinical examination stations.

The feature may include checklists, timed practice, progress tracking, and examination sequences.

OSCE materials are educational resources and may differ between institutions, examinations, countries, and examination boards.

Medaculous does not guarantee that any OSCE checklist reflects the current requirements of a particular examination board.

Where third-party resources are referenced, Medaculous does not claim ownership of those third-party resources unless expressly stated.

20. EXAM PLANNER

The Exam Planner may assist with planning preparation for examinations.

It does not guarantee:

- Examination success;
- A particular score;
- Passing an examination;
- Complete syllabus coverage;
- Accurate prediction of examination content.

Users remain responsible for reviewing the official syllabus and examination requirements applicable to their examination.

21. KNOWLEDGE HUB AND DOCUMENT PROCESSING

Users may be able to upload documents to the Knowledge Hub.

Uploaded documents may be processed using automated systems, including AI-based systems.

Document processing may produce:

- Incorrect summaries;
- Missing information;
- Incorrect classifications;
- Incorrect answers;
- Misinterpretations;
- Incorrect citations.

Users should consult the original document where accuracy is important.

22. MEDICAL CALCULATORS

Medaculous may provide calculators or links to third-party calculators.

Calculators may contain programming errors, incorrect assumptions, or outdated formulas.

Users must independently verify calculations when clinical decisions depend upon them.

A calculator output is not a medical recommendation.

23. THIRD-PARTY SERVICES AND LINKS

Medaculous may integrate with or link to third-party services, websites, APIs, databases, calculators, cloud-storage providers, payment processors, analytics providers, AI providers, or other services.

Third-party services are governed by their own terms and privacy policies.

Medaculous does not control and is not responsible for third-party services.

A link or integration does not constitute endorsement.

Third-party services may change or become unavailable without notice.

24. AI AND TECHNOLOGY PROVIDERS

Medaculous may use third-party technology providers to operate portions of the Services.

Depending on the architecture of the Services, these providers may process information submitted by users in order to provide requested functionality.

Additional information is provided in the Medaculous Privacy Policy.

We will not represent that information is processed solely by Medaculous if third-party processors are used.

25. PRIVACY

Your use of Medaculous is also governed by the Medaculous Privacy Policy.

The Privacy Policy explains how we collect, use, disclose, retain, and protect personal information.

The Privacy Policy forms part of these Terms.

Where applicable law gives you rights that cannot be waived by contract, nothing in these Terms is intended to limit those rights.

26. SECURITY

We use reasonable technical and organizational measures designed to protect the Services and information processed through them.

However, no internet-connected system can be guaranteed to be completely secure.

You acknowledge that:

- Transmission over the internet carries inherent risks;
- No security system is infallible;
- Third-party infrastructure may be involved;
- Device security is your responsibility.

You should use appropriate device security, including passwords, biometric protection, operating-system updates, and other available security measures.

27. SECURITY INCIDENTS AND DATA BREACHES

If Medaculous experiences a security incident involving personal information, we will respond in accordance with applicable law and our internal incident-response procedures.

Where applicable law requires notification to affected individuals, regulators, authorities, or other parties, we will provide such notification within the legally required timeframe and in the legally required manner.

Nothing in these Terms limits mandatory statutory breach-notification obligations.

28. INTELLECTUAL PROPERTY

The Medaculous name, logo, trademarks, software, user interface, original content, databases, designs, graphics, code, compilation, and proprietary technology are owned by or licensed to Medaculous.

Except as expressly permitted by these Terms, you may not:

- Copy;
- Reproduce;
- Modify;
- Distribute;
- Publish;
- Sell;
- License;
- Rent;
- Lease;
- Reverse engineer;
- Decompile;
- Disassemble;
- Create derivative works from;
- Systematically extract data from

the Services.

29. LIMITED LICENSE

Subject to these Terms, Medaculous grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Services for their intended purposes.

This license does not transfer ownership of the Services to you.

30. FEEDBACK

If you voluntarily provide feedback, suggestions, feature requests, bug reports, or other comments regarding Medaculous, you grant Medaculous the right to use that feedback without compensation or attribution, subject to applicable law.

You do not transfer ownership of your underlying intellectual property merely by submitting feedback.

31. ACCEPTABLE USE

You agree not to use Medaculous to:

- Commit or facilitate unlawful activity;
- Infringe intellectual-property rights;
- Violate privacy rights;
- Harass or abuse others;
- Circumvent security controls;
- Gain unauthorized access;
- Introduce malware;
- Conduct denial-of-service attacks;
- Scrape the Services at scale;
- Reverse engineer proprietary systems;
- Circumvent subscription restrictions;
- Create fraudulent accounts;
- Resell access without permission;
- Misrepresent Medaculous as a licensed healthcare provider;
- Use automated systems to interfere with the Services;
- Attempt to extract proprietary models, prompts, datasets, or algorithms;
- Use Medaculous in a manner that could reasonably endanger patients without appropriate professional verification.

32. CLINICAL RESPONSIBILITY

Healthcare professionals are responsible for their own professional decisions.

Nothing in these Terms transfers professional responsibility from a healthcare professional to Medaculous.

Medaculous does not supervise clinicians, prescribe medicines, establish standards of care, or determine whether a particular patient should receive a particular treatment.

33. NO PROFESSIONAL GUARANTEE

Medaculous does not guarantee:

- Employment;
- Licensing;
- Professional registration;
- Examination success;
- Clinical competence;
- Professional advancement;
- Patient outcomes.

34. SUBSCRIPTIONS

Certain features may require a paid subscription.

Subscription prices, billing intervals, included features, and promotional offers will be disclosed at the time of purchase.

By purchasing a subscription, you authorize the applicable payment provider to charge the applicable subscription fee.

Unless otherwise stated, subscriptions automatically renew at the end of each billing period until cancelled.

35. FREE TRIALS AND PROMOTIONS

Medaculous may offer free trials or promotional periods.

Unless expressly stated otherwise:

- A trial may automatically convert into a paid subscription;
- You must cancel before the end of the trial to avoid the next charge;
- Eligibility may be limited;
- We may modify or discontinue promotional offers;
- A promotional offer may not be combined with another offer.

Any trial-specific terms presented at signup will form part of your subscription agreement.

36. CANCELLATION

You may cancel your subscription according to the cancellation mechanism provided by Medaculous or the platform through which you purchased the subscription.

Cancellation generally prevents future renewal but does not necessarily result in a refund for the current billing period.

37. APP STORE PURCHASES

If you purchase Medaculous through Apple App Store, Google Play, or another third-party marketplace, additional terms imposed by that marketplace may apply.

Payment processing, refunds, cancellation mechanisms, and subscription management may be controlled by the relevant marketplace.

38. REFUNDS

Refunds will be handled according to the applicable purchase channel, refund policy, and mandatory consumer-protection laws.

Nothing in these Terms excludes a refund right that cannot legally be excluded.

39. PRICE CHANGES

We may change subscription prices.

Where required by law, we will provide advance notice of material price changes.

If you do not wish to accept a new price, you may cancel before the new price becomes effective, subject to applicable law.

40. SERVICE AVAILABILITY

We do not guarantee that Medaculous will always be:

- Available;
- Uninterrupted;
- Error-free;
- Secure;
- Compatible with every device;
- Compatible with every operating system;
- Free of defects.

Services may be temporarily unavailable due to maintenance, upgrades, infrastructure failures, cyber incidents, third-party failures, or circumstances outside our reasonable control.

41. FEATURE CHANGES

We may modify, add, remove, suspend, or discontinue features.

We may also change:

- User interfaces;

- Algorithms;
- AI models;
- Data sources;
- Clinical content;
- Pricing;
- Storage limits;
- Feature availability.

Where required by law, we will provide appropriate notice.

42. DISCLAIMER OF WARRANTIES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS.

MEDACULOUS DISCLAIMS WARRANTIES THAT CANNOT LAWFULLY BE EXCLUDED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, RELIABILITY, AND AVAILABILITY, TO THE MAXIMUM EXTENT PERMITTED BY LAW.

NOTHING IN THESE TERMS EXCLUDES WARRANTIES OR RIGHTS THAT CANNOT LEGALLY BE EXCLUDED.

43. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MEDACULOUS AND ITS OWNERS, DIRECTORS, OFFICERS, EMPLOYEES, CONTRACTORS, AFFILIATES, LICENSORS, SERVICE PROVIDERS, AND AGENTS SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING FROM OR RELATING TO YOUR USE OF THE SERVICES.

THIS MAY INCLUDE, TO THE EXTENT PERMITTED BY LAW:

- LOSS OF PROFITS;
- LOSS OF REVENUE;
- LOSS OF DATA;
- LOSS OF BUSINESS;
- BUSINESS INTERRUPTION;
- LOSS OF GOODWILL;
- LOSS OF OPPORTUNITY;

- CLINICAL OR PROFESSIONAL LOSSES.

44. LIABILITY CAP

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE TOTAL AGGREGATE LIABILITY OF MEDACULOUS ARISING OUT OF OR RELATING TO THE SERVICES OR THESE TERMS SHALL NOT EXCEED THE GREATER OF:

1. THE AMOUNT YOU PAID TO MEDACULOUS FOR THE SERVICES DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM; OR
2. ONE HUNDRED UNITED STATES DOLLARS (US\$100).

THIS LIMITATION DOES NOT APPLY TO LIABILITY THAT CANNOT LEGALLY BE LIMITED OR EXCLUDED UNDER APPLICABLE LAW.

45. EXCEPTIONS TO LIABILITY LIMITATIONS

Nothing in these Terms is intended to exclude or limit liability for:

- Fraud or fraudulent misrepresentation;
- Intentional misconduct where such limitation is prohibited;
- Death or personal injury to the extent liability cannot legally be excluded;
- Breach of non-waivable statutory rights;
- Other liability that applicable law prohibits us from excluding or limiting.

46. YOUR RESPONSIBILITY FOR CLINICAL USE

If you use Medaculous in a clinical environment, you acknowledge that:

1. You are responsible for independently verifying clinically significant information;
2. You will not rely solely upon AI-generated output;
3. You will use appropriate clinical references;
4. You will comply with applicable professional standards;
5. You will comply with local laws and institutional policies;
6. You will use appropriate safeguards for patient information.

47. INDEMNIFICATION

To the maximum extent permitted by applicable law, you agree to defend, indemnify, and hold harmless Medaculous and its owners, directors, officers, employees, contractors, affiliates, licensors, and service providers from claims, losses, liabilities, damages, costs, and reasonable legal expenses arising from:

- Your violation of these Terms;

- Your unlawful use of the Services;
- Your User Content;
- Your violation of another person's rights;
- Your misuse of patient information;
- Your unauthorized use of Medaculous;
- Your professional or clinical decisions made independently by you.

This provision does not require you to indemnify Medaculous for matters caused by Medaculous's own conduct to the extent such indemnification would be unlawful.

48. ACCOUNT SUSPENSION AND TERMINATION

We may suspend or terminate your account where reasonably necessary to:

- Protect the Services;
- Protect users;
- Prevent fraud;
- Investigate abuse;
- Comply with law;
- Address security risks;
- Enforce these Terms;
- Prevent unauthorized access.

Where reasonably practicable, we may provide notice and an opportunity to resolve the issue.

We may immediately suspend access where continued access presents a significant security, legal, or safety risk.

49. EFFECT OF TERMINATION

Upon termination:

- Your right to access the Services may end;
- Your account may be disabled;
- Subscription access may terminate;
- Certain User Content may become inaccessible;
- Information may be retained where required or permitted by law.

Our intellectual-property rights, disclaimers, liability provisions, indemnification provisions, dispute provisions, and other provisions intended by their nature to survive termination will survive.

50. DATA DELETION

You may request deletion of your account and personal information in accordance with the Privacy Policy.

Deletion may not be immediate in all circumstances.

We may retain information where reasonably necessary to:

- Comply with legal obligations;
- Resolve disputes;
- Prevent fraud;
- Enforce agreements;
- Maintain security;
- Meet regulatory requirements;
- Complete financial records.

Where permitted, retained information will be handled in accordance with the Privacy Policy.

51. GOVERNMENT AND LAW ENFORCEMENT REQUESTS

We may disclose information when reasonably necessary to comply with:

- Court orders;
- Warrants;
- Subpoenas;
- Government requests;
- Regulatory requirements;
- Legal proceedings.

We will handle such requests in accordance with applicable law.

52. INTERNATIONAL USE

Medaculous may be accessible internationally.

Medical regulations, privacy laws, professional requirements, drug approvals, and clinical guidelines differ between countries.

You are responsible for complying with laws applicable to your use of the Services.

We do not represent that Medaculous is appropriate, approved, registered, or legally available in every jurisdiction.

53. REGULATORY STATUS

Unless expressly stated otherwise, Medaculous is not represented as an approved medical device, diagnostic device, prescribing system, electronic health record, or regulated clinical system in every jurisdiction.

Features may be subject to regulatory requirements depending on how they are marketed, configured, and used.

We may restrict or modify features in particular jurisdictions where necessary to comply with applicable law.

54. EXPORT AND SANCTIONS COMPLIANCE

You may not use Medaculous in violation of applicable export-control, sanctions, or trade laws.

We may restrict access where required by law.

55. DISPUTE RESOLUTION

Before initiating formal legal proceedings, the parties should attempt in good faith to resolve a dispute by contacting Medaculous at the address provided below.

Nothing in this provision prevents either party from seeking urgent injunctive or other equitable relief where legally available.

56. GOVERNING LAW

Subject to mandatory consumer-protection and other applicable laws, these Terms shall be governed by the laws of Pakistan, without regard to conflict-of-law principles.

The courts of Pakistan shall have jurisdiction over disputes unless applicable law provides otherwise.

Important: the governing-law clause should be finalized by legal counsel based on the actual legal entity, incorporation jurisdiction, target markets, and consumer laws applicable to Medaculous.

57. CONSUMER RIGHTS

Nothing in these Terms is intended to remove or restrict rights that you have under mandatory consumer-protection, privacy, healthcare, or other laws applicable to you.

Where a provision of these Terms is unenforceable under applicable law, the remaining provisions will continue to apply to the maximum extent permitted.

58. SEVERABILITY

If any provision of these Terms is found invalid, illegal, or unenforceable, that provision will be modified or interpreted to the minimum extent necessary to make it enforceable, where legally permitted.

The remaining provisions will remain in effect.

59. NO WAIVER

Our failure to enforce a provision of these Terms does not constitute a waiver of our right to enforce that provision later.

60. ASSIGNMENT

You may not assign or transfer your rights or obligations under these Terms without our prior written consent.

We may assign these Terms in connection with a merger, acquisition, restructuring, sale of assets, financing, or transfer of the Medaculous business.

61. ENTIRE AGREEMENT

These Terms, together with the Privacy Policy and any additional terms expressly incorporated into them, constitute the agreement between you and Medaculous concerning the Services.

Additional feature-specific terms may apply where clearly presented to you.

62. ELECTRONIC ACCEPTANCE

By clicking "I Agree," creating an account, subscribing, or using the Services, you agree to these Terms electronically.

You acknowledge that electronic acceptance constitutes your agreement to be bound by these Terms to the extent permitted by law.

63. CHANGES TO THESE TERMS

We may update these Terms periodically.

If we make material changes, we may notify users through:

- Email;
- In-app notification;
- Website notice;
- Other reasonable means.

Where required by law, we will obtain renewed consent before applying material changes to existing users.

The "Last Updated" date at the top of these Terms indicates when the Terms were most recently revised.

64. CONTACT INFORMATION

Medaculous

Email: talk2saadalam@gmail.com

65. ACKNOWLEDGMENT

BY USING MEDACULOUS, YOU ACKNOWLEDGE THAT:

1. MEDACULOUS IS NOT A SUBSTITUTE FOR PROFESSIONAL MEDICAL JUDGMENT;
2. AI-GENERATED INFORMATION MAY BE WRONG;
3. CLINICAL INFORMATION MUST BE INDEPENDENTLY VERIFIED;
4. MEDACULOUS DOES NOT GUARANTEE DIAGNOSES, TREATMENTS, MEDICATION CHOICES, OR PATIENT OUTCOMES;
5. YOU ARE RESPONSIBLE FOR YOUR USE OF THE SERVICES;
6. YOU WILL NOT RELY SOLELY ON MEDACULOUS FOR EMERGENCY OR CRITICAL CLINICAL DECISIONS;
7. YOU WILL HANDLE PATIENT INFORMATION IN ACCORDANCE WITH APPLICABLE LAW;
8. YOU HAVE READ AND AGREE TO THESE TERMS; AND
9. YOU HAVE READ THE MEDACULOUS PRIVACY POLICY.

END OF TERMS OF SERVICE